

SENATE/HOUSE FILE _____
BY (PROPOSED IOWA PUBLIC
EMPLOYEES' RETIREMENT
SYSTEM BILL)

A BILL FOR

1 An Act relating to matters under the purview of the Iowa public
2 employees' retirement system, and including effective date
3 provisions.
4 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 97B.17, subsection 1, Code 2026, is
2 amended to read as follows:

3 1. The system shall establish and maintain records of
4 each member, including but not limited to the amount of wages
5 of each member, the contributions made on behalf of each
6 member with interest, interest dividends credited, beneficiary
7 designations, and applications for benefits of any type. The
8 records may be maintained in paper, magnetic, or electronic
9 form, including optical disk storage, as set forth in chapter
10 554D. The system may accept, ~~but shall not require,~~ electronic
11 records and electronic signatures to the extent permitted under
12 chapter 554D. These records are the basis for the compilation
13 of the retirement benefits provided under this chapter.

14 Sec. 2. Section 97B.17, Code 2026, is amended by adding the
15 following new subsection:

16 NEW SUBSECTION. 6. The system may release the legal name of
17 a member or beneficiary to the treasurer of state for purposes
18 of assisting the system in locating the member or beneficiary.

19 Sec. 3. Section 97B.18, Code 2026, is amended to read as
20 follows:

21 **97B.18 Statement of accumulated credit.**

22 After the expiration of each calendar year ~~and prior to July~~
23 ~~1 of the succeeding year,~~ the system shall furnish each member
24 with a statement of the member's accumulated contributions and
25 benefit credits accrued ~~under this chapter up to the end of~~
26 ~~that calendar year~~ over the prior four quarters and additional
27 information the system deems useful to a member. The system
28 may furnish an estimate of the credits as of the projected
29 normal retirement date of the member under section 97B.45. The
30 records of the system as shown by the statement as to the wages
31 of each individual member for a year and the periods of payment
32 shall be conclusive for the purpose of this chapter, except as
33 otherwise provided in this chapter.

34 Sec. 4. Section 97B.48, subsection 6, Code 2026, is amended
35 to read as follows:

1 6. Effective July 1, 2005, monthly Monthly retirement
2 allowance payments shall be directly deposited without charge
3 to a retired member's account via electronic funds transfer.
4 A In lieu of electronic funds transfers, a retired member
5 may elect to receive monthly allowance payments in the form
6 of a reloadable payment card for which the system shall not
7 charge an administrative fee, or as paper warrants in lieu
8 of electronic funds transfers, but for which the system
9 shall charge an administrative fee for processing ~~such paper~~
10 ~~warrants~~. However, the system may, for good cause shown, waive
11 the administrative fee. The fee may be automatically deducted
12 from the monthly retirement allowance before the warrant is
13 issued to the retired member.

14 Sec. 5. EFFECTIVE DATE. This Act, being deemed of immediate
15 importance, takes effect upon enactment.

EXPLANATION

17 The inclusion of this explanation does not constitute agreement with
18 the explanation's substance by the members of the general assembly.

19 This bill strikes a prohibition on the Iowa public
20 employees' retirement system (IPERS) requiring electronic
21 records and electronic signatures of members to the extent
22 permitted under Code chapter 554D (electronic transactions —
23 computer agreements). The bill also allows IPERS to release
24 the legal name of a member or beneficiary to the treasurer of
25 state to assist IPERS in locating the member or beneficiary.

26 The bill removes the requirement for IPERS, between January
27 and June of each calendar year, to provide each member with a
28 statement of the member's accumulated contributions and benefit
29 credits accrued up to the end of the prior calendar year and
30 instead requires IPERS to provide each member a statement
31 reflecting the prior four quarters during each calendar year.

32 Under current law, a retired member can receive monthly
33 retirement allowance payments via electronic funds transfers
34 or, with the cost of an administrative fee, as paper warrants.
35 The bill provides a third option, allowing a retired member to

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- 1 choose to receive monthly payments in the form of a reloadable
- 2 payment card without being charged an administrative fee.
- 3 The bill takes effect upon enactment.